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Article

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Consumer Attention in the Digital Era: Modernizing the Likelihood of Confusion Standard

This article critically examines the role of consumer attention in the EU's likelihood of confusion test ('LoC'), the central standard in trademark law used to assess unlawful similarity between two trademarks. Traditionally rooted in a normative construct of the 'average consumer', who might mistakenly associate one mark with another, the LoC test assumes a reasonably well-informed, observant, and circumspect individual whose attention varies with the type of goods or services at issue. However, this model seems to inadequately reflect the realities of modern, digitally mediated purchasing environments.

Integrating insights from behavioral economics, the paper argues that contemporary consumer attention is shaped less by intrinsic product features (e.g. price) and more by the pervasive use of digital tools, such as online reviews and product comparison systems. These tools enable consumers to process vast amounts of pre-purchase information, potentially enhancing their attentiveness and decision-making, even in low-cost or everyday purchases. The article calls for a redefinition of the 'average consumer' as a digital-native internet user, aligning with existing CJEU jurisprudence in online trademark infringement cases. The paper briefly examines the ways in which artificial intelligence is transforming consumer behavior, potentially improving decision-making processes but also posing risks to consumer autonomy.

By utilising behavioral economic insights, the paper advocates a modernized LoC framework that better reflects digital purchasing realities, emphasizing the importance of digital tool engagement as a proxy for consumer attentiveness and urging courts to recalibrate the average consumer standard accordingly and its impact on the LoC test.

I. Introduction

The average consumer is placed at the heart of the likelihood of confusion test ('LoC'), a fundamental legal construct adopted in European Union judicial practice to assess unlawful similarity between two trademarks. According to established case law, the LoC test is a multifactor test, which requires a global assessment between multiple factors once a degree of similarity between two signs is found. This paper critically examines consumer attention – an often underestimated yet crucial factor – in refining the legal construct of the average consumer within the LoC test. From the perspective of trademarks as reducers of search costs, this paper explores how consumer attention operates in contemporary purchasing environments. In doing so, the paper adds a touch of empirical insight to the average consumer concept, addressing some criticisms of its abstract and generalized nature.

While the framework requires a reflection that holds together the normative and empirical components, this paper seeks to incorporate insights from behavioral economics into the normative evaluation of consumer attention. Behavioral economics research shows that consumers rely heavily on online information, regardless of whether they ultimately purchase online or in physical stores. Therefore, including this consideration into the assessment of consumer attention helps ensure that the LoC remains aligned with the reality of purchases. This paper employs an interdisciplinary methodology, integrating insights from behavioral economics to analyse the limitations of consumer attention assessment in the LoC test under EU trademark law. It advocates a revised framework that more accurately reflects modern consumer decision-making dynamics.

The paper is structured as follows. The first section discusses the multifactor LoC test under EU case law, emphasizing the need for clearer guidance from the Court of Justice of the European Union ('CJEU') on assessing consumer attention. The second section explores the 'average consumer' concept in EU trademark law, highlighting the tension between its normative and empirical dimensions and advocating a more market-reflective approach to consumer attention. The third section examines how EU case law evaluates consumer attention in trademark disputes, noting its case-by-case flexibility based on product type and arguing for a stronger emphasis on likelihood of digital tools deployment for navigating the market as an indicator of attentiveness. The fourth section challenges the assumption that consumers' attention is tied to product characteristics like price, contending instead that deployment of digital tools to navigate online information now plays a larger role, and suggesting that the

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judicial application of EU trademark law should reflect this shift in assessing the level of attention of consumers. The fifth section proposes a redefinition of the 'average consumer' to align with the internet user standard, noting that the CJEU case law is already accustomed to the concept within online trademark infringement. The sixth section extends the discussion to the role of artificial intelligence (AI)-assisted purchasing, analysing the legal challenges posed by AI tools in trademark law. Finally, by observing the potential overall attention enhancement on consumers via digital tools, the paper concludes with a call for a deeper reflection in legal doctrine and case law on the emergence of an internet-based, AI-assisted average consumer in the context of LoC assessment.

II. Likelihood of confusion in a nutshell

The LoC test is a pivotal judicial test applied within trademark law, strongly linked to the essential justification for trademark protection, i.e. origin identification.[1] If the primary function of a trademark is to reliably indicate the commercial origin of a product in the marketplace, then actions to prevent consumer confusion are a necessary corollary.[2]

Despite being a crucial concept within trademark law, the EU legislation[3] does not provide a definition of what 'confusion' refers to. Case law[4] therefore took over and clarified that the concept of LoC refers to situations where the public (i) directly confuses the conflicting trademarks, that is to say, mistakes one for the other,[5] and (ii) makes a connection between the conflicting trademarks and assumes that the goods/services in question are from the same or economically linked undertakings (likelihood of association).[6] Such an assessment comes into play in situations of conflict between trademarks in the registration proceedings before the European Union Intellectual Property Office ('EUIPO'),[7] or in judicial proceedings for infringement before EU courts or national courts of the Member States.[8]

The perspective to be adopted for the LoC assessment is the average consumer's,[9] a legal construct describing the characteristics of the fictitious 'individual', whose confusion determines whether there is a relative ground for refusal of a trademark application or the occurrence of a trademark infringement. According to the EUIPO Guidelines,[10] the LoC is assessed via an iterative process that weighs up all the relevant factors: (1) comparison of goods and services; (2) comparison of signs; (3) distinctiveness of the earlier mark; (4) relevant public and degree of attention; (5) other factors; (6) other circumstances to be considered in the global assessment of the LoC. The CJEU has instructed that the correct approach to analysing these variables and also the LoC as a whole is to adopt a 'global appreciation' of all relevant factors and the contribution they might make to confusion.[11] The court thereby avoided the messy legal question of how much weight ought to be attached to each of those factors.[12]

Moreover, the court treats all the factors as interdependent,[13] in the sense that a lesser degree of intensity of one factor may be compensated for by a greater degree of intensity of the others. Thus, the CJEU's guidelines for courts to assess confusion are clear in their general structure, though not exhaustive. The CJEU emphasizes that all relevant factors, including those not explicitly mentioned, should be considered as they may influence the LoC.[14] Nevertheless, it

1 See recital No 11 of the Regulation (EU) 2017/1001 of the European Parliament and of the Council of 14 June 2017 on the European Union trademark [2017] OJ L154/1, ('EUTMR') which provides: 'the protection afforded by an EU trademark, the function of which is in particular to guarantee the trademark as an indication of origin'. Annette Kur and Martin Senftleben, *European Trade Mark Law* (OUP 2017) 6. The primary purpose of trademark law is to establish a clear association between distinctive signs and the goods or services provided by a specific commercial source. This allows businesses to effectively distinguish their offerings in the marketplace while enabling consumers to express their preferences by choosing particular products or services. By promoting market transparency through trademark protection, the law fosters fair competition, safeguards consumer interests, and enhances the overall efficiency of markets. In line with these considerations, the CJEU refers to 'the essential function of the trade mark, which is to guarantee the identity of the origin of the trade-marked product to the consumer or final user by enabling him to distinguish without any possibility of confusion between that product and products which have another origin' in case C-1/81 *Pfizer v Eurim-Pharm* ECLI:EU:C:1981:291, para 8. In later decisions, the CJEU referred to the 'essential' origin function in this context: see case C-206/01 *Arsenal v Reed* ECLI:EU:C:2002:651, para 48; case C-245/02 *Anheuser-Busch Inc. v Budějovický Budvar* ECLI:EU:C:2004:717, para 59; case C-48/05 *Adam Opel AG v Autec AG* ECLI:EU:C:2007:55, para 21. See broadly on the 'essential function' Ilanah Simon Fhimah, 'How does «essential function» doctrine drive European trademark law? - What is the essential function of a trademark?' (2005) 36(4) IIC 401.

2 Ilanah Fhima and Dev Ganjee, *The Confusion Test in European Trade Mark Law* (OUP 2019) 160.

3 EUTMR and Directive (EU) 2015/2436 of the European Parliament and of the Council of 16 December 2015 to approximate the laws of the Member States relating to trademarks [2015] OJ L336/1.

4 The landmark judgment on this point is case C-39/97 *Canon Kabushiki Kaisha v Metro-Goldwyn-Mayer Inc.* ECLI:EU:C:1998:442, paras 29-30. The court clarified that: 'the risk that the public might believe that the goods and services in question come from the same undertaking or, as the case may be, from economically linked undertakings, constitutes a likelihood of confusion […] there can be no such likelihood where it does not appear that the public could believe that the goods or services come from the same undertaking or, as the case may be, from economically linked undertakings'.

5 Likelihood of confusion means a probability of confusion on the part of the relevant consumer and does not require actual confusion. See case T-346/04 *Sadas SA v OHIM* ECLI:EU:T:2005:420, para 69: 'it is not necessary to establish the existence of actual confusion, but the existence of a likelihood of confusion'.

6 On likelihood of association see case C-251/95 *Sabèl BV v Puma AG* ECLI:EU:C:1997:528, para 260. See also in similar terms: case C-51/09 *Barbara Becker v Harman International Industries Inc.* ECLI:EU:C:2010:368, para 31; case C-193/06 P *Société des produits Nestlé SA v EUIPO* ECLI:EU:C:2007:539, para 32; case C-334/05 P *OHIM v Shaker di L. Laudato & C. Sas* ECLI:EU:C:2007:333, para 33; case C-412/05 P *Alcon Inc. v OHIM* ECLI:EU:C:2007:252, para 55.

7 See art 8(1)(b) EUTMR.

8 See art 9(2)(b) EUTMR.

9 Case C-342/97 *Lloyd Schuhfabrik Meyer & Co GmbH v Klijsen Handel BV* ECLI:EU:C:1999:323, para 26.

10 Guidelines for Examination in the Office, Part C Opposition, Version 1.3, 31 March 2024, 890.

11 See *Sabèl* (n 6) para 22. The court states that: 'the likelihood of confusion depends on numerous elements and, in particular, on the recognition of the trademark on the market, of the association which can be made with the used or registered sign, of the degree of similarity between the trademark and the sign and between the goods or services identified. The likelihood of confusion must therefore be appreciated globally, taking into account all factors relevant to the circumstances of the case'.

12 Alice Blythe, 'Confusion Online: Does the Test for Trade Mark Confusion on the Internet Differ from that Applied to Infringement in Other Spheres?' (2014) 36 EIPR 564.

13 See *Canon* (n 4) para 17.

14 Ilanah Fhima and Catrina Denvir, 'An Empirical Analysis of the Likelihood of Confusion Factors in European Trade Mark Law' (2015) 46 IIC 310, 311.

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derives from the formulation of Art. 8(1)(b) and Art. 9(2)(b) of the European Union Trade Mark Regulation ('EUTMR') that a degree of similarity between the signs and between the goods or services represents the necessary condition for the assessment of the LoC.

Against this background, where a case-by-case approach would seem to prevail, authoritative scholarship has empirically explored the research question of whether certain factors statistically weigh more than others in finding the subsistence of LoC.[15] The investigation found its *raison d'être* in the fact that 'courts frequently apply factors which lead to similarity of marks, similarity of goods/services, distinctiveness almost by rote and in a weird sort of algebra, treating the confusion finding as an inevitable outcome of finding similarity on each of those factors, thus losing sight of how real consumers might behave'.[16]

Among the noteworthy outcomes of the empirical research conducted by Fhima and Denvir, it was found that the sophistication of consumers (i.e. relevant public and degree of attention) was not influential in predicting the LoC. Interestingly, while courts provided a definition of the relevant consumer in almost every confusion decision, in most cases the court failed to state the effect that this definition has on the LoC. Therefore, Fhima and Denvir pointed out that this factor deserves more of the CJEU's attention, remarking that guidance from the CJEU as to how different types of consumers, with their relevant characteristics, may resolve this issue within the LoC assessment.[17]

Fhima and Denvir's findings serve as the foundation for the arguments presented in this paper, which specifically challenge the level of attention attributed to the average consumer in the assessment of the LoC. As will be illustrated, considering the integration of digital tools in the evaluation of consumers' attention would find its pragmatic relevance in future judicial practice – ranging from the EUIPO and Member States to the CJEU – particularly in cases addressing the LoC in relation to consumer sophistication.

III. Average consumer in a nutshell

Moving from the mentioned need for a clarification of the consumer's sophistication, this paper ultimately aims to provide some food for thought regarding the improvement and adjustment of the concept of the average consumer, by elaborating on the consumer's degree of attention. Before moving into the substance of this article's argument, this section will explore the main features of the 'average consumer', giving some critical account of the model, which lies somewhere between the legal fiction in its essence and an empirical dimension. The purpose of this clarification is to remind us that even normative claims that inform legal constructs must be solidly grounded in the actual reality considered.

The LoC standard under EU trademark legislation has to be tested referring to 'part of the public', which has been interpreted as to the average consumer since three central decisions (*Sabèl*,[18] *Gut Springenheide*,[19] *Lloyd Schuhfabrik*[20]) by the CJEU from the late 1990s. The decisions were important to developing the average consumer in EU trademark law and still stand as the key precedents.[21]

In the *Sabèl* case the CJEU first stated that 'the perception of marks in the mind of the average consumer of the type of goods or services in question plays a decisive role in the global appreciation of the likelihood of confusion'[22] and developed the main constituent criteria of the confusion test which, after more than twenty years, still stand firmly. Subsequently, as affirmed the *Gut Springenheide* case, the CJEU held that to determine whether the trademark is able to mislead the purchaser, account should be taken of 'the presumed expectations of an average consumer who is reasonably well-informed and reasonably observant and circumspect'.[23] In the *Lloyd Schuhfabrik* decision, the CJEU tied the knot between and *Sabèl* and *Gut Springenheide*, by affirming that 'the average consumer only rarely has the chance to make a direct comparison between the different marks but must place his trust in the imperfect picture of them that he has kept in his mind. It should also be borne in mind that the average consumer's level of attention is likely to vary according to the category of goods or services in question'.[24]

Following the judicial introduction, the average consumer has become a long-standing and crucial concept in trademark law, extensively adopted by the European judicial authorities (CJEU, EU General Court, EUIPO) and the Member States' case law. The EUIPO Guidelines expressly report today that the term 'average consumer' is a legal concept that is used in the sense of the 'relevant consumer' or 'relevant public'.[25]

That being said, it is evident that the global appreciation test is based on certain assumptions about how consumers will interpret information presented in trademarks when making purchasing decisions. It is assumed that consumers make purchase decisions based on a certain level of attentiveness, showing therefore a fairly high level of confidence in the abilities of EU consumers. However, it is easy to wonder whether judges are correctly putting themselves in the shoes of consumers by properly identifying certain behaviors as being representative of the relevant public of the products. The aim of the question at this point is not to challenge whether the high confidence in consumers' abilities is correct,

15 ibid.

16 Ilanah Fhima, 'Introducing Reality into Trade Mark Law' (2014) 9 JIPLP 684, 686.

17 Fhima and Denvir (n 14) 338.

18 *Sabèl BV v Puma AG* (n 6).

19 Case C-210/96 *Gut Springenheide GmbH and Tusky v Oberkreisdirektor des Kreises Steinfurt - AMT für Lebensmittelüberwachung* ECLI:EU:C:1998:369.

20 *Lloyd Schuhfabrik Meyer GmbH v Klijsen Handel BV* (n 9).

21 Rasmus Dalgaard Laustsen, *The Average Consumer in Confusion-based Disputes in European Trademark Law and Similar Fictions* (Springer 2020) 291. As Laustsen observes, the decisions *Sabèl* and *Lloyd* serve as foundational precedents for interpreting the LoC standard, encompassing the global appreciation test and the perspective of the average consumer. It is noted that Laustsen's publication offers a thorough analysis of the LoC standard, highlighting how European union trademark law applies the average consumer incoherently and inconsistently.

22 *Sabèl BV v Puma* (n 6) para 23.

23 *Gut Springenheide* (n 19) para 37.

24 *Lloyd Schuhfabrik* (n 9) para 26.

25 Guidelines for Examination in the Office, Part C Opposition, Version 1.3, 31 March 2024, 964.

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but rather to ensure that the underlying assumptions are valid and reflect reality.[26]

Here the tension between a normative and an empirical conception of the consumer in trademark law becomes striking. On the one hand, a normative view of the consumer assigns default characteristics to the consumer, therefore indicating how consumers should be assumed to behave in a specific context. By validating those assumptions, the judicial interpretation ensures an outcome that the law regards as prescriptively desirable. On the other hand, an empirical view of the consumer involves an assessment grounded in actual (measured) behavior.[27]

However, if the normative and the empirical conception of the consumer diverge too much, the consequence is an unrealistic judicial outcome, where the 'average consumer' is an idealized figure, whose standards will be never met by actual individuals. In other words, if courts rely too heavily on a normative view that describes the best or the worst possible consumer, they may construct an *idealized* consumer – one who is far more or far less rational and attentive than real people. Essentially, courts might underestimate or overestimate the LoC because they assume consumers are more or less discerning than they actually are. The implication is that trademark law could fail to protect consumers adequately if the assumptions underpinning the normative view are too far removed from reality.[28]

To date, the hypothetical consumer in EU trademark law is imbued with an understanding that clearly reflects normative commitments rather than any empirical reality.[29] While it is well established that there must be a 'significant part of the public' being confused[30] in order to give rise to the infringement, the consumer is by no means a percentage-based or quantitative concept. The CJEU took a qualitative approach that requires national courts, with reliance upon their faculty of judgement, to ascertain typical reactions of a hypothetical consumer towards the allegedly infringing signs.[31]

The reason why judicial practice predominantly adopts an abstract, normative conception of the consumer – namely, the conception established within the framework of trademark law – has a straightforward explanation. The belief in the existence of an average consumer – which is driven by a neo-classical thinking according to which a utility-maximizing individual consumer exists, regardless of the heterogeneity of consumers – presents the practical appeal of enabling judges to predict and make assumptions about aggregate consumer choice, without the need of collection and interpretation of (often costly) empirical data.[32] However, behavioral economics challenged the neoclassical conception, showing that consumer's behavior will not necessarily accord with economic modelling which assumes rationality, and that consumers change their decision-making strategies in response to choice, context and complexity, specifically in an online vs. offline environment.[33]

It is no wonder that, as scholars have pointed out, the models of consumer decision-making implicitly and explicitly employed in trademark theory and doctrine are difficult to reconcile with current scientific and marketing understandings of consumer behavior.[34] Therefore, as has been wisely suggested by Weatherall, lawyers should be urged to view consumer behavior from a scientific perspective and to improve cross-disciplinary communication. In fact, many questions in trademark law cannot be directly answered by empirical studies due to a mismatch with scientific models, causing inconsistencies in how courts handle evidence, sometimes rejecting surveys but accepting less reliable proof.[35]

Although the abstract, normative model of the average consumer is still predominant, the need for a differentiated concept of consumer has already emerged in case law.[36] This variability emerges both vertically in the evaluation of distinctiveness and LoC, and horizontally in aspects like the national and linguistic features of the relevant consumers.

As Dinwoodie and Gangee have highlighted, courts' attempts to define or construct consumers, and their marketplace are blended exercises that are part-empirical and part-normative.[37] Acknowledging this combination explicitly, they argue, will foster a more robust discussion about the consumer's role in European trademark law and the evidence or considerations that courts should take into account.[38] Once it is accepted that no single item of evidence is dispositive, as opposed to merely potentially helpful and considered within a broader (normatively structured) framework, the use of empirical evidence will be less threatening to the judicial role.[39]

While I support Davies' argument that the average consumer should receive greater attention from the CJEU, and its conceptualization should include insights

26 It must also be observed that the assessment conducted by courts regarding the average consumer applicable to the cases at stake is necessarily influenced by the assessments proposed by the opposing parties. In this specific regard, it has been argued by Barton Beebe, 'Search and Persuasion in Trademark Law' (2005) 103 Michigan Law Review 2021, that litigants selectively advance a consumer construct that alternates between 'sovereign' and 'fool' upon convenience.

27 Graeme Dinwoodie and Dev Gangjee, 'The Image of the Consumer in European Trade Mark Law' in Dorota Leczykiewicz and Stephen Weatherill (eds), *The Image(s) of the Consumer in EU Law* (Hart Publishing 2015) 339, 345.

28 ibid 377: 'the gap between normative and ideal cannot become too wide lest the policy goal of market integration undermine the consumer protection objectives of trademark law'.

29 Kimberlee Weatherall, 'The Consumer as the Empirical Measure of Trade Mark Law' (2017) 80 Mod L Rev 57, 73.

30 See art 8(1)(b) EUTMR, which provides that the LoC shall exist on 'part of the public'. The EUIPO guidelines explain that 'average consumer' is here used in the sense of the 'relevant public', the section of consumer which is practically concerned with the potential confusion. See Guidelines for Examination in the Office, Part C Opposition, Version 1.3, 31 March 2024, 964.

31 Yang Xiao, 'A Thousand Faces of the Average Consumer: Towards a More Empirically Grounded Approach to the Infringement Test?' (2022) 17 JIPLP 560.

32 Jennifer Davis, 'Locating the Average Consumer: His Judicial Origins, Intellectual Influences and Current Role in European Trade Mark Law' (2005) 2 I.P.Q. 183, 197.

33 Jennifer Davis, 'Revisiting the Average Consumer: An Uncertain Presence in Trade Mark Law' (2015) 1 I.P.Q. 15, 23-24.

34 Mark McKenna, 'A Consumer Decision-Making Theory of Trademark Law' (2012) 98 Virginia L Rev 67; Glenn Christensen, Eric DeRosia and Thomas Lee, 'Trademarks, Consumer Psychology, and the Sophisticated Consumer' (2008) 57 Emory L. J. 575; Jacob Jacoby, 'The Psychological Foundations of Trademark Law: Secondary Meaning, Genericism, Fame, Confusion and Dilution' (2001) 91 Trademark Reporter 1013.

35 Weatherall (n 29) 60.

36 See for example the differentiation between the average consumer and the internet user, as highlighted by Davis, 'Revisiting the average consumer: an uncertain presence in trademark law' (n 33).

37 Dinwoodie and Gangjee (n 27) 339.

38 ibid.

39 ibid 371.

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from behavioral economics,[40] this paper will not examine that issue in depth. The goal of this paper is to propose a normative approach to how consumer's attention is conceptualized in disputes involving LoC. This approach seeks to bridge the gap between theoretical models and practical realities by incorporating insights from behavioral economics, offering a more grounded perspective on the construct of the average consumer.

IV. Level of attention

Moving from the need to properly identifying the features of the average consumer in a way that includes both the normative and the empirical dimension, this section will focus on how the consumer's degree of attention is currently assessed by the EU case law within the framework of the LoC. In particular, it will be pointed out how the level of attention is derived from the characteristics of products and services, rather than from the features of the average consumer.

When identifying the features of the average consumer pertinent to the case at stake,[41] which includes both the actual and the potential customers, the court normally distinguishes between the general public (or public at large), and a professional or specialised public (or business customers), based on the goods and services in question.

While for some products or services the public will be either exclusively general or specialised, with the attention evaluated accordingly, a different reasoning is adopted for products or services which target both the general public and specialists.[42] In that case, in fact, the LoC will be assessed against the perception of the part of the public displaying the lower degree of attentiveness, as it will be more prone to being confused. If this part of the public is not likely to be confused, it is even more unlikely that the part of the public with a higher degree of attention will be.[43]

That said, when assessing consumers' attentiveness, EU courts generally apply the principle that states that level of attention varies according to the different type of goods or services.[44] In general, the consumer's level of attention is deemed to be different for 'everyday consumer goods' and 'specialized consumer goods', and it can be qualified as high, average or low.[45] Whether its degree of attention will be higher or lower will depend, *inter alia*, on the nature of the relevant goods and services and the knowledge, experience and purchase involvement of the relevant public.[46]

Everyday consumer goods include 'low-cost, mass produced goods for everyday use',[47] directed at the members of the general public, who pay either low or an average level of attention at time of purchase. Examples of such goods are foodstuff and beverages,[48] which are abundantly displayed on shelves in food retailers, restaurants and bars; watches, alarm clocks, items of costume jewellery,[49] and sunglasses;[50] bags, handbags, pocket wallets, purses, key cases, rucksacks; umbrellas,[51] various clothing pieces,[52] and footwear.[53]

Outside everyday consumer goods there are specialized goods, either sold 'business-to-business' or 'business-to-consumer'.[54] If the goods are directed at specialised or professional purchasers, the 'relevant public's attention will be greater than for everyday consumer goods'.[55] Aspects that could move goods outside the realm of everyday consumer goods may relate to how the goods are purchased and to the significance of the goods to the consumer. The level of attention will on the other hand be high(er), where the goods or services are durable, have a high value or are intended for more exceptional use. The mere fact that a type of product is not purchased regularly by the average consumer suggests that that consumer's level of attention will be fairly high. The same high level of attention is assumed where the public is made up of specialists in the sector. Examples of such goods, by virtue of their nature, include chemicals,[56] paints,[57] heating installations,[58] and medical equipment.[59]

40 Davis, 'Revisiting the Average Consumer: An Uncertain Presence in Trade Mark Law' (n 33) 30.

41 art 8(1)(b) EUTMR, in fact, refers to the 'part of the public'. The EUIPO guidelines here explain that 'average consumer' is here used in the sense of the 'relevant public', the section of consumer which is practically concerned with the potential confusion. This is usually defined by taking into account the territory defined by the earlier mark: (i) the relevant public is always the public in the territory/territories where the earlier right(s) is/are protected; (ii) the goods and services that have been found identical or similar: likelihood of confusion is always assessed against the perception of the consumers of the goods and services that have been found identical or similar. Depending on the goods or services, the relevant public is the general public or a professional/specialised public.

42 Guidelines for Examination in the Office, Part C Opposition, Version 1.2, 31 March 2024, 965.

43 ibid.

44 Guidelines for Examination in the Office, Part C Opposition, Version 1.2, 31 March 2024, 968.

45 Jeroen Muyldermans and Paul Maeyaert, *Likelihood of Confusion in Trade Mark Law: A Practical Guide to the Case Law of EU Courts* (Wolters Kluwer 2019) 72-78.

46 ibid.

47 Case T-202/14 *LR Health & Beauty Systems GmbH v OHIM* ECLI:EU:T:2016:28, para 23 (unpublished).

48 Case T-546/08 *Villa Almè v OHIM* ECLI:EU:T:2010:404, para 37; case T-291/07 *Viñedos y Bodegas Príncipe Alfonso de Hohenlohe v OHIM* ECLI:EU:T:2009:352, para 29; case T-458/07 *Dominio de la Vega SL v OHIM* ECLI:EU:T:2009:337, para 27; case T-13/05 *Castell del Remei v OHIM* ECLI:EU:T:2006:335, para 46.

49 Case T-292/08 *Inditex SA v OHIM* ECLI:EU:T:2010:399, para 74; case T-147/03 *Devinlec Développement Innovation Leclerc SA v OHIM* ECLI:EU:T:2006:10, para 63.

50 Case T-380/09 *Luciano Bianchin v OHIM* [2010] ECR II-00272, para 28.

51 Case T-537/11 *Hultafors Group AB v OHIM* ECLI:EU:T:2013:207, para 23 (unpublished).

52 Case T-337/16 *Versace 19.69 Abbigliamento Sportivo v EUIPO* ECLI:EU:T:2017:692, para 75; case T-557/10 *H.Eich S.r.l. v OHIM* ECLI:EU:T:2012:309, para 22. For socks, in particular, the level of attention is deemed to be low: case T-547/08 *X Technology Swiss GmbH v OHIM* ECLI:EU:T:2010:235, para 43.

53 *Hultafors Group AB v OHIM* (n 51).

54 Business-to-Business sales ('B2B') refer to transactions where a business sells products or services to another business, focusing on tailored solutions and longer sales cycles. Conversely, Business-to-Consumer sales ('B2C') involve businesses selling directly to individual consumers, emphasizing convenience and emotional appeal. Retail goods typically fall into this latter category. These two sales models are distinguished primarily by their target audiences and marketing approaches.

55 Case T-451/11 *Gigabyte Technology Co., Ltd v OHIM* ECLI:EU:T:2013:13, para 38.

56 Case T-80/08 *CureVac GmbH v OHIM* ECLI:EU:T:2009:416, para 2.

57 Case T-12/13 *Sherwin-Williams Sweden AB v OHIM* ECLI:EU:T:2014:1054, para 52.

58 Case T-267/14 *Zehnder Group International v EUIPO* ECLI:EU:T:2016:252, para 43.

59 Case T-382/09 *Ergo Versicherungsgruppe AG v OHIM* ECLI:EU:T:2011:454, para 28; case T-353/04 *Ontex NV v OHIM* ECLI:EU:T:2007:47, para 60; case T-211/03 *Faber Chimica S.r.l. v OHIM* ECLI:EU:T:2005:135, para 24.

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The fact that the relevant public consists of the general public does not necessarily mean that the degree of attention cannot be high (for instance, when expensive, potentially hazardous or technically sophisticated goods are purchased).[60] Likewise, the fact that the goods at issue target specialists does not necessarily mean that the degree of attention is always high. It is true that, in principle, the professional public has a high degree of attention when purchasing a specific product. This is when these professional consumers are considered to have special background knowledge or experience in relation to the specific goods and services.[61] Moreover, purchases made by professional consumers are often more systematic than the purchases made by the general public.[62] However, this is not always so. In some cases, such as when the relevant goods or services are used by a given professional on a daily basis, for example, the degree of attention paid may be average or low, even in relation to those professional consumers.[63]

Properly defining the degree of attention of the relevant public is necessary, as this factor can weigh for or against a finding of a LoC. Whilst the relevant consumer usually relies on the imperfect recollection of a trademark, a high degree of attention of the relevant consumer may lead to the conclusion that the relevant consumer will not confuse the marks, despite the lack of direct comparison between the trademarks.[64] However, a high degree of attention does not automatically lead to a finding of no likelihood of confusion, in light of the interdependence principle.[65] Likelihood of confusion can exist despite a high degree of attention. For example, when there is a strong likelihood of confusion created by other factors, such as close overall similarity of the marks and the identity of the goods, the attention of the relevant public alone cannot be relied upon to prevent confusion.[66]

From the outlined framework, it clearly emerges that the EU courts do not apply predictable, fixed and repeatable criteria for assessing the level of attention of the consumer. It seems that the only recurrent correlation is the common sense finding according to which consumers are more attentive when purchasing expensive items.

The flexible reasoning adopted by courts reflects a case-by-case approach that, while practical given the numerous variables involved in the LoC assessment, tends to lack consistency and predictability. Moreover, the commonly assumed link between high prices and increased consumer attentiveness is questionable in light of current purchasing behaviors. Consumers today often rely on readily available online information – such as reviews and product comparisons – accessed through digital tools, even for everyday retail decisions. Consulting online reviews, for example, has become a routine part of the decision-making process. As a result, this paper argues for a more nuanced understanding of the average consumer – one that considers the role of digital tools in processing the vast amount of pre-purchase information and uses this as a more accurate proxy for assessing attentiveness.

V. The average consumer as an internet user by default

In this section some considerations will be presented which are aimed at both improving the methods of assessing consumers' attention, and highlighting the need to better integrate the normative component of the average consumer into the reality of modern shopping, which is significantly facilitated by the internet.

Modern consumers have become digital experts due to the pervasive integration of technology into daily life and its transformative impact on communication, shopping, and decision-making.[67] This shift is largely attributed to the widespread availability and accessibility of technology, which has significantly lowered barriers to entry and facilitated its adoption across all demographics. The increasing reliance on technology for everyday tasks has equipped consumers with a functional understanding of digital systems.[68] Furthermore, the prevalence of technology-driven platforms and digital experiences has shaped consumer expectations for seamless, intuitive, and user-friendly interactions across all points of engagement.[69] As a result, digital literacy has become a universal trait, transforming the average consumer into a highly informed and tech-savvy participant in both private and business contexts.[70] The heavy integration of internet in the daily purchasing mechanisms may inevitably impact the significance of trademarks as search costs reducers, where information about products is easily obtained online.

In the past, the purchasing method was significantly different from today's. Consumers had fewer choices, and the decision-making process was often simpler and more straightforward.[71] Consumers typically had access to a limited range of products and brands, often restricted to what was available in local stores. This limited choice meant that consumers spent less time on decision-making.[72] Shopping was also a predominantly local activity, with consumers buying from nearby shops and markets. This local focus meant that personal relationships between customers and shopkeepers were more common, fostering trust and loyalty.[73] In this setting, trademarks played a crucial role in building brand trust

60 Guidelines for Examination in the Office, Part C Opposition, Version 1.3, 31 March 2024, 968.

61 ibid.

62 ibid.

63 ibid.

64 Case T-486/07 *Ford Motor Company v OHIM* ECLI:EU:T:2013:297, para 95.

65 See *Canon* (n 4) para 17. See also case T-394/10 *Elena Grebenshikova v OHIM* ECLI:EU:T:2014:1103, para 16.

66 Case T-443/12 *Equinix GmbH v OHIM* ECLI:EU:T:2013:605, paras 53-56.

67 Livia Rainsberger, *The Modern Customer – the PHANTOM: Customers on the Run: How Sales must Respond to Radically New Buying Behavior* (Springer 2023) 56-58.

68 ibid.

69 ibid.

70 ibid.

71 Christine Haight Farley, 'Do Trademarks Reduce Search Costs in the Age of Information?' in Glynn Lunney (ed), *Research Handbook on the Law and Economics of Trademark Law* (Edward Elgar 2023) 108-09.

72 ibid.

73 Above n 71.

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and recognition. In an environment with fewer choices, trademarks signified quality and consistency and helped consumers make quicker decisions with confidence. Trademarks, therefore, not only served as a source of trade origin, but also reduced search costs for consumers.[74]

Today's reality could not be any more different, with its complex, overwhelmingly option-rich, and digitally driven marketplace. The sheer volume of choices now available to consumers – a phenomenon often referred to as 'choice overload' – can sometimes lead to decision paralysis, where consumers find it difficult to make any choice at all, due to the overwhelming number of options.[75] At the same time, however, amid this overwhelming landscape, brand attractiveness continues to play a crucial role in retaining customers, especially in situations where trademarks symbolize status. Rather than getting lost in the sea of choices, consumers may gravitate toward well-established brands with strong identities that provide a sense of trust, quality assurance, and even social prestige, reinforcing their personal identity and social standing.

Nevertheless, the way consumers purchase products has transformed radically. Online shopping has introduced new behaviors and expectations. Factors such as convenience, speed, and the ability to compare countless products and prices in real-time are now critical components of the shopping experience. This has been further exacerbated by the COVID-19 pandemic, which accelerated the shift to online purchasing.[76]

In this context, some scholarship interestingly argues that trademarks no longer reduce search costs, being therefore deprived of one of their functions.[77] While this article acknowledges this perspective to some extent, it contends that the mechanism of search-cost reduction has evolved rather than disappeared. Given the accelerating influence of AI, trademark doctrine must undergo a robust and timely adaptation to remain up to date. A brief overview of these issues will be provided in the sixth section.

In the current digital era, consumers have shifted away from depending exclusively on trademarks and advertising to guide their purchasing decisions. Instead, they actively look for information that includes feedback and experiences from other consumers, especially through online reviews.[78] Research shows that over half of consumers regard online reviews as a vital source of information when making a purchase decision.[79] This change in behavior stems from the fact that consumers generally trust peer recommendations more than conventional advertisements. As a result, online reviews have become essential communication channels for businesses.[80]

Given what has been discussed earlier, it is my opinion that the level of attention consumers pay during purchases cannot be solely attributed to the characteristics of the products or services themselves. Instead, it must also consider several other factors, especially the likelihood of information consumption about that product or service.

74 Scholars have extensively explored the field of the economic analysis of trademarks since the 1970s under the propulsive push of the Chicago School, grounding their reasoning on the assumption that trademark law – like tort law in general – pursues the goal of promoting economic efficiency. On the topic see: William Landes and Richard Posner, 'Trademark Law: An Economic Perspective' (1987) 30 JL & Econ 265; Andreas Papandreou, 'The Economic Effect of Trademarks' (1956) 44 California L. Rev. 503; Nicolas Economides, 'The Economics of Trademarks' (1988) 78 Trademark Reporter 523; Giovanni Ramello, 'What's in a Sign: Trademark Law and Economic Theory' (2006) 20 J. Econ. Surveys 547; Andrew Griffiths, *An Economic Perspective on Trade Mark Law* (Edward Elgar 2011) ch 2; Thomas Miceli, *The Economic Approach to Law* (Stanford University Press 2017) 175. From the perspective of law and economics, a trademark serves as a legal monopoly aimed at addressing information asymmetry, a core cause of market failure. By conveying reliable information about the quality of goods and services, trademarks reduce consumer uncertainty and search costs, thereby enabling informed purchase decisions. This incentivizes producers to maintain and improve quality, leveraging their reputation for competitive advantage. Economically, trademarks mitigate the risks of misleading consumers, improve average product quality, reduce transaction costs, and support the functioning of competitive market equilibria.

75 For an overview on this topic see: Alexander Chernev, Ulf Böckenholt and Joseph Goodman, 'Choice Overload: A Conceptual Review and Meta-Analysis' (2015) 25(2) Journal of Consumer Psychology 333. Offering consumers a large variety of options can both benefit and hinder choice. Greater options increase the likelihood of finding a close match to purchase goals (William Baumol and Edward Ide, 'Variety in Retailing' (1956) 3 Management Science 93) and may strengthen preferences by offering option value (David Reibstein and others, 'Number of Choices and Perceived Decision Freedom as a Determinant of Satisfaction and Consumer Behavior' (1975) 60 Journal of Applied Psychology 434) and maintaining flexibility in uncertain future tastes (Barbara Kahn and Donald Lehmann, 'Modelling Choice Among Assortments' (1991) 67 Journal of Retailing 274; David Kreps, 'A Representation Theorem for Preference for Flexibility' (1979) 47 Econometrica 565). Larger assortments also support variety-seeking behaviour (Jeffrey Inman, 'The Role of Sensory-Specific Satiety in Attribute-Level Variety Seeking' (2001) 28 Journal of Consumer Research 105; Barbara Kahn, 'Consumer Variety-Seeking Among Goods and Services' (1995) 2 Journal of Retailing & Consumer Services 139; Johnathan Levav and Rui Zhu, 'Seeking Freedom through Variety' (2009) 36 Journal of Consumer Research 600; Erica Van Herpen and Rik Pieters, 'The Variety of an Assortment: An Extension to the Attribute-Based Approach' (2002) 21 Marketing Science 331), create a perception of freedom of choice (Barbara Kahn, William Moore and Rashi Glazer, 'Experiments in Constrained Choice' (1987) 14 Journal of Consumer Research 96), enhance shopping enjoyment (Barry Babin, William Darden and Mitch Griffin, 'Work and/or Fun: Measuring Hedonic and Utilitarian Shopping Value' (1994) 20 Journal of Consumer Research, 644), and boost choice satisfaction (Simona Botti and Sheena Iyengar, 'The Psychological Pleasure and Pain of Choosing: When People Prefer Choosing at the Cost of Subsequent Outcome Satisfaction' (2004) 87 Journal of Personality and Social Psychology 312). However, the cognitive costs of larger assortments can reduce purchase likelihood. For instance, consumers preferred an assortment of six jam flavours over 24 (Sheena Iyengar and Mark Lepper, 'When Choice is Demotivating: Can One Desire Too Much of a Good Thing?' (2000) 79 Journal of Personality and Social Psychology 995). Similar findings are noted across chocolates (Jonah Berger and others, 'The Influence of Product Variety on Brand Perception and Choice' (2007) 26 Marketing Science 460; Alexander Chernev, 'When More Is Less and Less is More: The Role of Ideal Point Availability and Assortment in Consumer Choice' (2003) 30 Journal of Consumer Research 170), electronics (Alexander Chernev, 'Product Assortment and Individual Decision Processes' (2003) 85 Journal of Personality and Social Psychology 151), and mutual funds (Maureen Morrin and others, 'Saving for Retirement: The Effects of Fund Assortment Size and Investor Knowledge on Asset Allocation Strategies' (2008) 42 Journal of Consumer Affairs 206).

76 Maryam Shaaban, Allam Hamdan and Ramzia Albakri, 'The Factors Affecting Online Buying Behavior of Consumers During Crises: Literature Review' in Bahaaeddin Alareeni and others (eds), *Digitalisation: Opportunities and Challenges for Business* – Vol II (Springer 2023) 172.

77 Haight Farley in Lunney (n 71) 92.

78 Elvira Ismagilova and others, 'The Effect of Electronic Word of Mouth Communications on Intention to Buy: A Meta-Analysis' (2020) 22 Information System Frontiers 1203.

79 Carla Ruiz-Mafe, Kalliopi Chatzipanagiotou and Rafael Curras-Perez, 'The Role of Emotions and Conflicting Online Reviews on Consumers' Purchase Intentions' (2018) 89 Journal of Business Research 336; Sai Vijay Tata, Sanjeev Prashar and Sumeet Gupta, 'An Examination of the Role of Review Valence and Review Source in Varying Consumption Contexts on Purchase Decision' (2020) 52 Journal of Retailing and Consumer Services 101734.

80 Yunjeong Ahn and Jieun Lee, 'The Impact of Online Reviews on Consumers' Purchase Intentions: Examining the Social Influence of Online Reviews, Group Smilarity, and Self-Construal' (2024) 19 Journal of Theoretical Applied Electronic Commerce Research 1060.

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Consumers extensively rely on this information to guide their purchasing decisions. This consideration applies to a vast array of products and services, irrespective of their price or whether they are marketed online or offline.

Common sense suggests that consumers actively seek online information to guide their purchasing decisions, even for inexpensive items.[81] Online reviews are the most obvious example, as they blend purely informative content with emotional evaluations from a peer-to-peer perspective.[82] When reading online reviews, consumers often apply basic statistical skills. For instance, they tend to give more weight to ratings with a larger number of reviews, considering them more reliable. Similarly, they prioritize recent feedback over older reviews for a more current evaluation of a product or service.[83] Consumers use online reviews to gain insights into the real-world experiences of other users, helping them assess the quality, functionality, and reliability of products or services.[84] They look for detailed accounts of pros and cons, common issues, and overall satisfaction levels. This process helps consumers form a more comprehensive understanding of what to expect, ultimately influencing their purchasing decisions and reducing the risk of buyer's remorse.

Furthermore, online marketplaces and platforms very often provide embedded comparison tools,[85] which – aided by visual schematics – indicate the most important characteristics of the products and allow users to filter by non-negotiable characteristics set by them, thereby streamlining the decision-making process and enhancing the overall shopping experience. These comparison tools typically feature side-by-side product listings that highlight key specifications such as price, user ratings, dimensions, and technical details. Interactive filters enable users to sort products based on criteria like brand, price range, and specific features such as energy efficiency or compatibility. Additionally, some platforms incorporate user reviews and expert ratings directly into the comparison, providing a comprehensive overview of each product's pros and cons. Visual aids like graphs and charts can further simplify complex data, making it easier for users to understand differences at a glance and choose the product that best meets their needs.[86]

Given all the above, it is difficult to accept that consumers display low levels of attention solely due to the intrinsic characteristics of a product, such as price. In reality, many other factors influence consumer behavior. Regardless of the product itself, modern consumers often demonstrate fairly high levels of attention, particularly due to their active use of digital tools during the purchasing process. These tools enable detailed comparisons based on individual preferences, making it unlikely that a similar sign encountered at the final stage of purchase – after a process requiring time and cognitive effort – would cause confusion. Notably, this remains true regardless of specific product features, including price.

Therefore, consumer attention would be better understood in relation to the likelihood of engaging with such digital tools to process information before purchasing. This likelihood, in turn, can be correlated to a specific categorization of the good involved. The law and economics approach[87] distinguishes between (i) search goods, whose quality can be assessed prior to purchase through inspection or research; (ii) experience goods, whose quality becomes apparent only after use; and (iii) credence goods, whose quality cannot be easily evaluated even post-purchase, requiring trust or expert judgement. When assessing the LoC, this categorization of goods would be more helpful in addressing consumers' attention. In particular, for experience and credence goods, it is more likely – based on practical reasoning – that consumers will engage with digital tools to process information, thereby exhibiting higher levels of attentiveness.

Consumers' reliance on online information in purchases rests on the important assumption that the information processed online by the consumer is accurate, unbiased, and neutral. However, it would be naive to assume that this is guaranteed in online markets. The recent EU legislative efforts, particularly the Digital Services Act[88] (DSA), aim to address this issue. As a major regulatory framework, the DSA seeks to hold online platforms accountable for content, protect users, and ensure transparency, ultimately fostering a safer and fairer digital space.[89] If effectively implemented, the DSA could significantly improve the quality of online information consumers rely on.[90]

This shift in the paradigm of attention rests upon one more important assumption: the average consumer has become an internet user by default. As strong as that statement might sound, this can be fairly deemed as the current reality, and if not yet, certainly the future reality, in

81 Adam Alexander Buick, 'In Search of Value: Trade Marks and Search Costs in the Age of the Internet' (2023) 15 Law, Innovation and Technology 435, 440.

82 Subhash Jha, Abhijit Biswas and Prashanth Ravula, 'Research: What Consumers Find Persuasive in Online Reviews' (*Harvard Business Review*, 18 February 2025) <https://hbr.org/2025/02/research-what-consumers-find-persuasive-in-online-reviews> accessed 27 March 2025.

83 For example, some researchers found – among other things – that the proportion of reviews matters, since a higher ratio of positive to negative reviews leads to greater purchase likelihood. See Le Bo, Yimo Chen and Xiaoli Yang, 'The Impact of Contradictory Online Reviews on Consumer Online Purchase Decision: Experimental Evidence From China' <https://doi.org/10.1177/21582440231180107> accessed 27 March 2025.

84 Michael Podolsky, 'Online Review Trends Affecting Today's Consumers' (*Forbes*, 8 February 2024) <https://www.forbes.com/councils/forbesbusinesscouncil/2024/02/08/online-review-trends-affecting-todays-consumers/> accessed 27 March 2025.

85 Kate Moran and Taylor Dykes, 'Comparison Tables for Products, Services, and Features' (*NN/g*, 9 February 2024) <https://www.nngroup.com/articles/comparison-tables> accessed 27 March 2025.

86 Katherine Eberhard, 'The Effects of Visualization on Judgment and Decision-Making: A Systematic Literature Review' (2023) 73 Manag Rev Q 167, 205.

87 In the law and economics framework, goods are categorized based on how consumers evaluate their quality or value. The three main categories are the following: (1) search goods, whose quality can be evaluated by consumers before purchase through inspection or research; (2) experience goods, whose quality can be evaluated by consumers only after purchase or during consumption (Philip Nelson, 'Information and Consumer Behavior' (1970) 78(2) Journal of Political Economy 311); (3) credence goods, whose quality cannot be easily assessed by consumers even after purchase or use, and they must rely on trust or expert opinion (Michael R Darby and Edi Karni, 'Free Competition and the Optimal Amount of Fraud' (1973) 16(1) Journal of Law and Economics 67). Each category influences market behavior and legal rules, as the ability to assess quality affects consumer protection, regulation, and competition.

88 Regulation (EU) 2022/2065 of the European Parliament and of the Council of 19 October 2022 on a Single Market for Digital Services and amending Directive 2000/31/EC (Digital Services Act) [2022] OJ L277/1.

89 See, in particular, Recitals 2, 9, and 62 of the DSA, which explicitly outline the objectives of content accountability, user protection, and the assurance of transparency.

90 Aina Turillazzi and others, 'The Digital Services Act: An Analysis of Its Ethical, Legal, and Social Implications' (2023) 15 Law, Innovation and Technology 83, 95-96.

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light of the naturally growing population of digital native generations.[91] On closer inspection, framing the average consumer as an internet user is nothing new in the legal landscape. This perspective aligns with the established EU judicial practice of interpreting the 'average consumer' as an internet-proficient individual,[92] as demonstrated in landmark cases from almost fifteen years ago such as *Google France*,[93] *Interflora*[94] and *L'Oréal*.[95] In these cases, the court evaluated keyword advertising from trademark infringement purposes from the standpoint of a consumer who primarily engages with digital content. This interpretation presupposes that the average consumer is 'normally informed and reasonably attentive internet user', and so is particularly skilled within the digital landscape. Such a consumer is expected to possess a basic understanding of online practices, including the ability to distinguish between sponsored advertisements and organic search results, as well as the capacity to conduct independent online research.

In summary, the concept of the 'average consumer' relevant for trademark law must be redefined to reflect the digital nature of modern shopping. Specifically with regard to online infringement cases, EU case law already acknowledges the 'average consumer' as an informed and internet-proficient individual, capable of navigating online content effectively. Therefore, assessments of consumer behavior in the LoC cases – both in the opposition context and the infringement context – must account for the increased role of digital literacy and the availability and processing of online information in shaping consumer decisions.

VI. The impact of AI on consumers' purchasing behavior

This section examines how AI is reshaping the digital market landscape, significantly altering purchasing behaviors and impacting consumers' attention. Any discussion on integrating digital tools into the consumer experience must now contend with AI's disruptive influence – an undeniable force in this transformation. AI is rapidly redefining decision-making in online markets, presenting challenges to assessing the average consumer's cognitive processes. This section explores key scenarios where AI complicates this evaluation, particularly in determining consumer attention for the assessment of the LoC. Yet, while AI's impact is profound, the section entertains a counterpoint to the idea that consumer autonomy faces imminent annulment.

AI-driven mechanisms – ranging from product recommendation systems and virtual assistants to fully autonomous ordering technologies – interact with consumers at various touchpoints. The three primary AI applications in e-commerce – product recommendation systems, virtual assistants, and automated ordering – engage with consumers in distinct ways, raising critical concerns regarding consumer autonomy and the evolving role of trademarks in digital retail environments.[96]

Among the most influential AI tools in online retail are product recommendation systems, virtual assistants, and automated ordering technologies. Product recommendation systems operate through three primary filtering techniques: content-based filtering, which suggests products similar to past purchases; collaborative filtering, which recommends items based on the behavior of similar users; and hybrid filtering, which combines both approaches to enhance accuracy.[97] These systems primarily assist consumers in identifying preferences and comparing options. Virtual assistants, such as Amazon Alexa, Apple Siri, and Google Assistant, further refine the shopping experience by facilitating product discovery, order placement, payment processing, and delivery selection.[98] Automated ordering systems, in turn, minimize consumer involvement by autonomously placing orders based on pre-set preferences, as exemplified by Amazon's smart reordering features or Samsung's AI-driven appliances.[99] While currently limited in scope, such technologies are poised for expansion, raising evident concerns about consumer autonomy. AI-driven ordering, particularly when influenced by platform-brand partnerships, may override individual preferences, thereby shifting decision-making power from the consumer to the AI system itself and effectively diminishing consumer agency.[100]

In light of the crystal-clear influence of AI on consumer behavior, a high degree of legal attention should be paid to those situations in which AI is employed in ways that could harm the consumer, for example, when it is used as a tool to either subtly or overtly manipulate consumer choices through advertising techniques or suggestive mechanisms such as 'hypernudging'. However, those concerns are primarily tackled by the whole sets of law which deal with consumer protection.[101] A recent example of this urgency is represented by the cited EU Digital Services Act,[102] which introduces transparency

91 Rainsberger, *The Modern Customer – the PHANTOM* (n 67) 56-58.

92 Davis, 'Revisiting the Average Consumer: An Uncertain Presence in Trade Mark Law' (n 33) 15.

93 Case C-236/08 *Google France SARL v Louis Vuitton Malletier SA* ECLI:EU:C:2010:159, para 84: 'The function of indicating the origin of the mark is adversely affected if the ad does not enable normally informed and reasonably attentive internet users, or enables them only with difficulty, to ascertain whether the goods or services referred to by the ad originate from the proprietor of the trade mark or an undertaking economically connected to it or, on the contrary, originate from a third party'.

94 Case C-323/09 *Interflora Inc and other v Marks & Spencer plc and other* ECLI:EU:C:2011:604, para 45.

95 Case C-324/09 *L'Oréal SA v eBay International AG* ECLI:EU:C:2011:474, para 94.

96 Christine Haight Farley, 'Trademarks in an Algorithmic World' (2023) 98 Wash. L. Rev. 1123, 1128.

97 For an illustrative overview see Stephen Amell, 'AI-based Recommendation System: A Comprehensive Guide' (*Medium*, 31 July 2024) <https://medium.com/@iamamellstephen/ai-based-recommendation-system-a-comprehensive-guide-5562817db5f1> accessed 27 March 2025.

98 For an overview over AI virtual assistants see Navita, Yogesh Mohan and Ravinder Singh, 'A Review of Virtual Assistants' (2024) 11 Journal of Emerging Technologies and Innovative Research 369.

99 For examples see: Jennifer Pattison Tuohy, 'Samsung's smart fridges will use AI to suggest groceries to buy on Instacart' (*The Verge*, 2 January 2025) <https://www.theverge.com/2025/1/2/24334411/samsung-instacart-smart-fridge-partnership> accessed 27 March 2025; Leena Rao, 'Amazon Adds Its Smart Reordering Service to Samsung Printers' (*Fortune*, 23 February 2016) <https://fortune.com/2016/02/23/amazon-dash-samsung/> accessed 27 March 2025.

100 Vera Sevastianova, 'Trademarks in the Age of Automated Commerce: Consumer Choice and Autonomy' (2023) 54 IIC 1561.

101 Evelyne Terryn and Sylvia Martos Marquez, 'AI and Consumer Protection' in Nathalie Smuha (ed), *The Cambridge Handbook of the Law, Ethics and Policy of Artificial Intelligence* (CUP 2025) ch 10, 192-210.

102 Regulation (EU) 2022/2065 of the European Parliament and of the Council of 19 October 2022 on a Single Market for Digital Services and amending Directive 2000/31/EC.

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obligations for AI-driven behavioral advertising, requiring disclosure of ad sources and targeting parameters.[103] Thus, the focus of the section will be maintained on some aspects of AI in digital marketplaces that directly impact trademark law.

A fundamental aspect of AI is its ability to process vast amounts of information instantaneously. This raises important questions about its integration into consumer decision-making and its potential interference with the scope of trademarks. The key issue is that trademarks – which traditionally serve as information simplifiers for consumers by allowing them to quickly recognize and associate products with a certain level of quality, origin, or reputation – may see their role diminished.[104] Consumers increasingly rely on AI to assess product attributes in real time, bypassing direct engagement with trademarks. Since AI can analyze far more data than humans ever could, this shift fundamentally alters how trademarks function in the marketplace. Given that today's marketplace is complex, overwhelmingly rich in options, and digitally driven, acquiring valuable information about products and services becomes a necessary act of filtering. As Grynberg puts it, 'the problem is finding one's preferred signal amid the surrounding noise'.[105]

The technological shift toward AI-driven information filtering marks a significant transformation in how trademark functions unfold. Traditionally, trademarks operate within a framework of direct, bilateral interaction between consumers and the signs distinguishing products and services. However, this is no longer the case, as digital tools – and particularly AI – enable consumers to gather product and service information online without relying on traditional trademarks.

This phenomenon has already been noted in academic scholarship, which has begun exploring AI's effects on the various functions performed by trademarks. Scholars have examined its impact on the most prominent functions, such as indicating the source of origin and serving as a quality identifier, as well as ancillary roles like advertising and brand reputation.[106] Notably, AI's influence extends beyond the most intuitively affected function – reducing search costs – suggesting a broader transformation in the role of trademarks.

Returning to the topic of consumers integrating AI into their purchasing decisions, it is crucial to consider the impact of this technological reliance on consumer attention. The effects of AI on consumer focus and engagement with trademarks warrant further exploration, particularly from a behavioral economics perspective.[107] At the same time, this issue deserves careful consideration in relation to its implications for the LoC assessment.

The latter is assessed from the perspective of human consumers, not machines. Traditional confusion tests assume that human consumers have imperfect memory and limited attention.[108] Machines, by contrast, cannot experience confusion in the 'human' sense – but they can produce false outputs if fed with incorrect, biased or manipulated datasets. Since AI and smart devices significantly enhance human cognitive capabilities, questions arise about how the LoC test should adapt to a machine-assisted world. As AI becomes more integrated into consumer decision-making, the traditional 'average consumer' – typically described as relying on the 'imperfect recollection of signs' – may no longer be a fitting benchmark. Instead, AI-assisted consumers will be better informed, more observant, and less susceptible to deception and confusion.[109]

That said, this assumption hinges on the specific AI's role as *assistant* in the purchasing process, especially in the first two stages: identifying needs and preferences, and comparing available options. If the final purchasing decision remains under human control, the shift to be applied to the parameter would be from an 'average consumer' to a '*augmented* average consumer'.[110] This assumption indeed places significant agency on consumers, holding them accountable for their choices. It envisions consumers who do not passively surrender decision-making to technology but instead use AI as a tool to enhance their abilities to navigate marketplaces. These are individuals who remain actively engaged, leveraging AI for efficiency and insight while still maintaining oversight and control throughout the purchasing process.

More drastic scenarios must also be cautiously considered, particularly those involving fully automated purchases.[111] These scenarios are especially intriguing from a legal perspective, as they challenge the foundational role of human decision-making in consumer transactions. When machines, rather than humans, take over

103 Martin Senftleben, 'Trademark Law, AI-Driven Behavioral Advertising, and the Digital Services Act: Toward Source and Parameter Transparency for Consumers, Brand Owners, and Competitors' in Ryan Abbott (ed), *Research Handbook on Intellectual Property and Artificial Intelligence* (Edward Elgar 2022) 309-24. See also Sevastianova (n 100) 1579.

104 Daryl Lim, 'Computational Trademark Infringement and Adjudication' in Abbott (n 103) ch 14, 259-89, 261. See also Michael Grynberg, 'AI and the "Death of Trademark"' (2020) 108 Ky L J 199, 219.

105 ibid 217.

106 See, on this point, Jurgita Randakevičiūtė-Alpman, 'The Role of Trademarks on Online Retail Platforms: An EU Trademark Law Perspective' [2021] GRUR International 633; Alpana Roy and Althaf Marsoof, 'Removing the Human from Trademark Law' (2024) 55 IIC 727; Anke Moerland and Christie Kafrouni, 'Online Shopping with Artificial Intelligence: What Role for Trade Marks' in Abbott (n 103); Rob Batty, 'Trade Mark Infringement and Artificial Intelligence' (2022) 26 New Zealand business law quarterly 158-61, Marie Christine Janssens and Vilte Kristina Dessers, 'The Artificially Intelligent Consumer in EU Trademark Law' in Louisa Specht-Riemenschneider and others (eds), *Festschrift für Thomas Dreier zum 65. Geburtstag* (CH Beck 2022) 143-59, which examine the impact of AI on trademark functions. These authors generally concur that the origin-indicating function is the most significantly affected by AI.

107 In my opinion this is crucial, otherwise there is a risk of overstating either consumer autonomy's annulment or enhancement. On this very same topic, for example, two different scholars locate at different ends of the spectrum: Batty (n 106) 138 remains optimistic, by affirming that the complete removal of humans from the shopping process is unlikely in the short term; conversely, Haight Farley, 'Trademarks in an Algorithmic World' (n 96) warns against the already happening consumer autonomy erosion.

108 Batty (n 106) 138.

109 Roy and Marsoof (n 106) 756.

110 For a similar concept, see Batty (n 106) 156, who affirms that: 'it is possible that courts will conceive a "robust" hypothetical person, who is used to viewing recommendations or search results in context and without "mixing up their minds"'.

111 Michal S Gal and Niva Elkin-Koren, 'Algorithmic Consumers' (2017) 30(2) Harv JL & Tech 309.

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purchasing decisions, the legal framework can no longer rely on the concept of the average consumer, since human involvement at the point of purchase is eliminated. In such cases, the issue of consumer confusion is in a sense resolved by default.

Going back to the previous scenario of AI *assistance* in purchases, it is also true that the whole picture is more nuanced and dynamic than it may seem at first glance. In fact, the AI technologies which assist online marketplaces significantly vary in sophistication, present differing degrees of involvement in the purchasing process, and operate at different stages. On this point it is fundamental to point out the work of Moerland and Kafrouni,[112] who have tackled the topic and made interesting proposals as to how to integrate AI into the legal model of the average consumer.

In particular, they make a general distinction between (i) less sophisticated AI mechanisms with high consumer involvement, and (ii) highly sophisticated AI mechanisms with allow consumer involvement.[113] For less sophisticated AI mechanisms that merely suggest purchasing options while leaving the final decision to the consumer, the traditional notion of the average consumer as a normally informed and reasonably attentive internet user remains relevant. However, AI-assisted purchasing alters certain characteristics of consumer behavior, as AI tools provide significantly more information than a human could independently process. This suggests that consumers aided by AI, even at a basic level, are better informed and have more accurate recollections of trademarks. In cases where highly sophisticated AI mechanisms play a dominant role in purchasing decisions, consumer involvement is significantly reduced.[114] Such mechanisms function in a similar way to professional advisors, filtering and presenting information in a structured manner based on the user's preferences. When consumers trust these AI-driven recommendations, their level of attentiveness diminishes, leading to almost automatic purchasing decisions that challenge the assumption of a reasonably circumspect and observant consumer. Whether such trust exists will depend on empirical evidence regarding AI accuracy and bias in specific contexts.

AI technology reshapes the definition of the average consumer by enhancing cognitive abilities through access to extended knowledge or, conversely, by diminishing consumer agency in decision-making. As suggested by Moerland and Kafrouni, courts should differentiate between AI-assisted and traditional purchases, develop a basic understanding of the AI system's sophistication and bias, adapt the broad concept of the average consumer to reflect AI-driven purchasing behaviors, and integrate behavioral and cognitive insights, particularly regarding trust in AI mechanisms.

VII. Conclusion

In conclusion, the analysis of the LoC under EU trademark law reveals the complexity of assessing consumers' attention within a rapidly evolving marketplace. The current judicial approach towards the factor of attentiveness, which often lacks predictability in its assessment within the LoC test, highlights the need for clearer guidance from the CJEU about how to correctly assess attention.

In doing so, the tension between normative and empirical perspectives on the average consumer should be borne in mind, given that the legal construct serves both a normative purpose – by attributing idealized characteristics to consumers to achieve specific legal outcomes – and an empirical one – by attempting to mirror actual consumer behavior. This is why – it is argued – the assessment of consumers' attention levels should be refined to reflect real market conditions more accurately, where digital tools and accessible online information are both integrated in the modern purchasing process. More specifically, this paper argues that the construct of the 'average consumer' should be shifted towards a fully digital consumer, i.e. an internet proficient user who navigates online and offline markets using all the digital tools available to make mindful purchases that meet their needs. This would represent the natural adaptation of the construct of the 'average consumer' to the current way of navigating marketplaces.

As the internet increasingly shapes consumer behavior, traditional assumptions about attentiveness – often based on product features such as price – require re-examination. Contemporary consumers frequently demonstrate attentiveness through active use of digital tools during the purchasing process. Especially for those goods whose quality can only be assessed after use (i.e. experience goods), and for those goods whose quality remains difficult to determine even post-consumption (i.e. credence goods), consumers are more likely to prompt such an engagement. Accordingly, this paper contends that the likelihood of consumers employing digital tools to navigate marketplaces and satisfy their preferences should serve as a key indicator of consumer attentiveness.

The increasing reliance on AI-driven digital assistance invites a closer examination of how such tools influence consumer behavior. As AI becomes more embedded in everyday decision-making it empowers individuals to navigate the overwhelming variety of choices in the modern marketplace with greater ease. By streamlining the selection process, AI not only saves time but also alleviates a cognitive burden. Within this evolving landscape, this paper introduces the concept of an 'augmented average consumer' in trademark law – an individual whose decision-making is enhanced by AI support. As these technologies become integral to the shopping experience, consumers are likely to develop more sophisticated prompting skills, gradually improving their digital literacy, albeit at a slower pace than the rapid progression of AI itself.

This is not a naïve endorsement of AI technologies or of human discernment in shopping. AI can produce biased outputs, subtly persuade, and undermine consumer agency, while users may passively delegate decision-making to such systems. These real and consequential issues warrant serious legal scrutiny. At heart, this is a 'premise problem' rooted in the design of

112 Moerland and Kafrouni (n 106) 302-08.
113 ibid 306-07.
114 ibid 306-07.

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AI-driven digital environments, with implications across consumer protection, competition law, and data privacy. The opacity and manipulative potential of AI demand regulatory oversight, which is already underway at the EU level. Yet, despite these concerns, AI remains a powerful tool for empowering consumers in both online and offline markets.

Ultimately, the growing role of AI in consumer decision-making necessitates a critical reassessment of the legal concept of the 'average consumer' and how their attentiveness is evaluated in the LoC. It is imperative that both courts and legal scholars revisit and adapt existing frameworks to reflect this shift. This paper argues that such a reassessment must be rooted in a realistic understanding of modern consumer behavior, beginning with the recognition that today's average consumer is a fully digital user who is heavily reliant on digital tools to process information about products and services.

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